

Motion to Strike Punitive Damages from Cross-Complaint

Schatz' Motion to Strike the prayer for punitive damages from the Cross-Complaint is **DENIED**, as there are fraud-based causes of action that are adequately pled. (Civil Code, § 3294(a).)

Motion to Strike Portions of Answer of NLTC, John Malek, and Daniel Zhuraley

Schatz argues that certain portions of the Answer filed by NLTC, John Malek, and Daniel Zhuraley should be stricken as not in conformity with Code of Civil Procedure section 431.30, which requires the responding party to clearly admit or deny the allegations or to deny if the responding party lacks information.

Section 431.30(d) provides that a general denial is sufficient if a complaint is not verified. Section 431.30 further provides: "If the defendant has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint, he or she may so state in his or her answer and place his or her denial on that ground." (Code Civ. Proc., § 431.40(e).)

The paragraphs to which Schatz objects state that Defendants neither admit nor deny certain paragraphs of the Complaint and they need more information. These paragraphs provide essentially the same information required by section 431.40(e), i.e., that Defendants have no information and belief sufficient to enable them to answer an allegation of the Complaint. Thus, the Motion to Strike portions of the Answer is **DENIED**. (See Code Civ. Proc., § 452 [allegations of a pleading must be liberally construed for the purpose of determining its effect].)

Moving party to give notice.

4. 30-2025-01535433

**BCAL Construction
Inc. vs. LA Clinque
Moliere Birthplace and
Woman's Wellness,
Inc.**

**1. Case Management Conference
2. Motion to Compel Production**

Plaintiff BCal Construction Inc. moves for an order compelling defendant Wole Ogunlana ("Defendant") to serve responses without objections to Request for Production, Set One and imposing monetary sanctions in the amount of \$2,460.00.

There is no dispute that responses to the written discovery were not timely served. Thus, objections have been waived. (Code Civ. Proc., § 2031.300(a).)

While Defendant contends that responses will be served before the hearing and relief from waiver of objections should be granted, relief may only be granted upon the Court's determination that the party has subsequently served a response that is in substantial compliance with the Code of Civil Procedure. (Code Civ. Proc., § 2031.300(a)(1).) Relief cannot be granted based solely on the promise that substantially compliant responses will be served. Further, a separate motion for relief is required. (See *id.* ["The court, on motion, may relieve that party from this waiver . . ."].)

Thus, the Motion to Compel Responses without objections is **GRANTED. Responses shall be served within 20 days.**

The Court **declines to award sanctions**. Given that Defendant was acting in pro per at the time the written discovery was served, the Court finds that the imposition of sanctions would be unjust. (Code Civ. Proc., § 2031.300(c).)

Moving party to give notice.